

II

(Non-legislative acts)

REGULATIONS

COMMISSION DELEGATED REGULATION (EU) 2023/222

of 1 December 2022

on the temporary suspension of the visa exemption for all nationals of Vanuatu

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2018/1806 of the European Parliament and of the Council of 14 November 2018 listing the third countries whose nationals must be in possession of visas when crossing the external borders and those whose nationals are exempt from that requirement ⁽¹⁾, and in particular Article 8(6), point (b) thereof,

Whereas:

- (1) The Republic of Vanuatu is listed in Annex II to Regulation (EU) 2018/1806 among the third countries whose nationals are exempt from the requirement to be in possession of a visa when crossing the external borders of the Member States for stays of no more than 90 days in any 180-day period. The exemption from the visa requirement for nationals of Vanuatu is applicable since 28 May 2015, when the Agreement between the European Union and the Republic of Vanuatu on the short-stay visa waiver ⁽²⁾ ('the Agreement') was signed and started to apply on a provisional basis in accordance with Article 8(1) of the Agreement. The agreement entered into force on 1 April 2017.
- (2) Since 25 May 2015, Vanuatu has been operating investor citizenship schemes by means of which third-country nationals who are otherwise visa-required have the possibility to obtain the citizenship of Vanuatu in exchange for investment, therefore obtaining visa-free access to the Union.
- (3) It has derived from relevant data, reports and statistics, and on the basis of concrete and reliable information ⁽³⁾ that the citizenship-by-investment schemes of Vanuatu, in their current form and operation, go against the objectives of the Union's visa policy, which provides for a screening of nationals from visa-required third countries against the criteria set out in Article 21 of Regulation (EC) No 810/2009 of the European Parliament and of the Council ⁽⁴⁾ and in equivalent national legislation of those Member States where Regulation (EC) No 810/2009 does not yet apply in full. The manner in which the said schemes are being implemented constitutes a circumvention of the Union short-stay visa procedure and the assessment of security and migratory risks it entails.
- (4) In accordance with Article 8(2)(d), 8(3) and 8(6) of Regulation (EU) 2018/1806, the Commission has concluded that the granting of citizenship by Vanuatu under its investor citizenship schemes constitutes an increased risk to the internal security and public policy of the Member States.

⁽¹⁾ OJ L 303, 28.11.2018, p. 39.

⁽²⁾ OJ L 173, 3.7.2015, p. 48.

⁽³⁾ Proposal for a Council Decision on the partial suspension of the application of the Agreement between the European Union and the Republic of Vanuatu on the short-stay visa waiver (COM/2022/6 final), recitals 5–12.

⁽⁴⁾ Regulation (EC) No 810/2009 of the European Parliament and of the Council of 13 July 2009 establishing a Community Code on Visas (Visa Code) (OJ L 243, 15.9.2009, p. 1).

- (5) On 3 March 2022, the Council adopted Decision (EU) 2022/366 ⁽⁵⁾, on the partial suspension of the application of the Agreement between the European Union and the Republic of Vanuatu on the short-stay visa waiver, in accordance with Article 8(4) of the Agreement. The suspension of the application of the Agreement is limited to ordinary passports issued as of 25 May 2015, when the number of successful applicants under Vanuatu's investor citizenship schemes started to increase significantly.
- (6) On 27 April 2022, the Commission adopted Implementing Regulation (EU) 2022/693 ⁽⁶⁾ on the temporary suspension of the visa exemption for nationals of Vanuatu, in accordance with Article 8(6), point (a) of Regulation (EU) 2018/1806. The suspension applies from 4 May 2022 to 3 February 2023.
- (7) Following the entry into force of the temporary suspension of the visa exemption for the aforementioned category of nationals of Vanuatu on 4 May 2022, and in accordance with Article 8(6), point (a), third subparagraph of Regulation (EU) 2018/1806, on 12 May 2022 the Commission established an enhanced dialogue with Vanuatu, with a view to remedying the circumstances having led to the temporary suspension of the visa exemption.
- (8) In the first meeting organised in the context of the enhanced dialogue, on 12 May 2022, the Commission expressed its willingness to find a solution and, to this end, proposed to hold monthly technical meetings. The parties agreed that the authorities of Vanuatu would appoint an interlocutor and communicate it to the Commission, in order to proceed with the subsequent technical meetings. Vanuatu informed the Commission of the decision of the Government of Vanuatu to set up a Task Force to review the investor citizenship schemes. It was agreed that the authorities of Vanuatu would transmit to the Commission a progress report prepared by the Task Force.
- (9) However, Vanuatu has not subsequently engaged in a meaningful way. To date, Vanuatu's investor citizenship schemes remain in operation. The Commission has not received any information from the authorities of Vanuatu with regard to possible legislative and non-legislative actions aiming at remedying the circumstances having led to the temporary suspension.
- (10) Thus, the circumstances referred to in Article 8(2), point (d) of Regulation (EU) 2018/1806, namely the increased risk to the public policy or internal security of Member States, persist.
- (11) Due to the persistence of the aforementioned circumstances and the absence of engagement of Vanuatu to remedy them, the application of the Agreement was suspended in whole by Council Decision (EU) 2022/2198 ⁽⁷⁾, repealing Decision (EU) 2022/366 and suspending the application of the Agreement for all nationals of Vanuatu.
- (12) In accordance with Article 8(6), point (b) of Regulation (EU) 2018/1806, given the persistence of the situation, it is necessary to adopt a delegated act temporarily suspending the visa exemption for a period of 18 months for all nationals of Vanuatu.
- (13) As regards Iceland and Norway, this Regulation constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning the latter's association with the implementation, application and development of the Schengen *acquis*, which fall within the area referred to in point B of Article 1 of Council Decision 1999/437/EC ⁽⁸⁾.

⁽⁵⁾ Council Decision (EU) 2022/366 of 3 March 2022 on the partial suspension of the application of the Agreement between the European Union and the Republic of Vanuatu on the short-stay visa waiver (OJ L 69, 4.3.2022, p. 105).

⁽⁶⁾ Commission Implementing Regulation (EU) 2022/693 of 27 April 2022 on the temporary suspension of the visa exemption for nationals of Vanuatu (OJ L 129, 3.5.2022, p. 18).

⁽⁷⁾ Council Decision (EU) 2022/2198 of 8 November 2022 on the suspension in whole of the application of the Agreement between the European Union and the Republic of Vanuatu on the short-stay visa waiver (OJ L 292, 11.11.2022, p. 47).

⁽⁸⁾ Council Decision 1999/437/EC of 17 May 1999 on certain arrangements for the application of the Agreement concluded by the Council of the European Union and the Republic of Iceland and the Kingdom of Norway concerning the association of those two States with the implementation, application and development of the Schengen *acquis* (OJ L 176, 10.7.1999, p. 31).

- (14) As regards Switzerland, this Regulation constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Agreement signed between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis*, which fall within the area referred to in points B and C of Article 1 of Decision 1999/437/EC, read in conjunction with Article 3 of Council Decision 2008/146/EC ⁽⁹⁾.
- (15) As regards Liechtenstein, this Regulation constitutes a development of the provisions of the Schengen *acquis* within the meaning of the Protocol between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis*, which fall within the area referred to in points B and C of Article 1 of Decision 1999/437/EC, read in conjunction with Article 3 of Council Decision 2011/350/EU ⁽¹⁰⁾.
- (16) This Regulation constitutes a development of the provisions of the Schengen *acquis* in which Ireland does not take part, in accordance with Council Decision 2002/192/EC ⁽¹¹⁾; Ireland is therefore not taking part in the adoption of this Regulation and is not bound by it or subject to its application.
- (17) This Regulation constitutes an act building upon, or otherwise relating to, the Schengen *acquis* within, respectively, the meaning of Article 3(1) of the 2003 Act of Accession, Article 4(1) of the 2005 Act of Accession and Article 4(1) of the 2011 Act of Accession,

HAS ADOPTED THIS REGULATION:

Article 1

Temporary suspension of the exemption from the visa requirement

In Annex II to Regulation (EU) 2018/1806, in point 1 ('States'), the reference to 'Vanuatu' is replaced by the following:

'Vanuatu (*)

(*) The exemption from the visa requirement for all nationals of Vanuatu is suspended from 4 February 2023 to 3 August 2024'.

Article 2

Entry into force and period of application

This Regulation shall enter into force on the day following that of its publication in the *Official Journal of the European Union*.

It shall apply from 4 February 2023 to 3 August 2024.

⁽⁹⁾ Council Decision 2008/146/EC of 28 January 2008 on the conclusion, on behalf of the European Community, of the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis* (OJ L 53, 27.2.2008, p. 1).

⁽¹⁰⁾ Council Decision 2011/350/EU of 7 March 2011 on the conclusion, on behalf of the European Union, of the Protocol between the European Union, the European Community, the Swiss Confederation and the Principality of Liechtenstein on the accession of the Principality of Liechtenstein to the Agreement between the European Union, the European Community and the Swiss Confederation on the Swiss Confederation's association with the implementation, application and development of the Schengen *acquis*, relating to the abolition of checks at internal borders and movement of persons (OJ L 160, 18.6.2011, p. 19).

⁽¹¹⁾ Council Decision 2002/192/EC of 28 February 2002 concerning Ireland's request to take part in some of the provisions of the Schengen *acquis* (OJ L 64, 7.3.2002, p. 20).

This Regulation shall be binding in its entirety and directly applicable in the Member States in accordance with the Treaties.

Done at Brussels, 1 December 2022.

For the Commission
The President
Ursula VON DER LEYEN
